15 *Case Withdrawn*

The trial began. The Government pleader, the Magistrate and other officials were on tenterhooks. They were at a loss to know what to do. The Government pleader was pressing the Magistrate to postpone the case. But I interfered and requested the Magistrate not to postpone the case, as I wanted to plead guilty to having disobeyed the order to leave Champaran, and read a brief statement as follows:

With the permission of the Court I would like to make a brief statement showing why I have taken the very serious step of seemingly disobeying the order passed under Section 144 of Cr. P. C. In my humble opinion it is a question of difference of opinion between the Local Administration and myself. I have entered the country with motives of rendering humanitarian and national service. I have done so in response to a pressing invitation to come and help the ryots, who urge they are not being fairly treated by the indigo planters. I could not render any help without studying the problem. I have, therefore, come to study it with the assistance, if possible, of the Administration and the planters. I have no other motive, and cannot believe that my coming can in any way disturb public peace and cause loss of life. I claim to have considerable experience in such matters. The Administration, however, have thought differently. I fully appreciate their difficulty, and I admit too that they can only proceed upon information they received. As a law-abiding citizen my first instinct would be, as it was, to obey the order served upon me. But I could not do so without doing violence to my sense of duty to those for whom I have come. I feel that I could just now serve them only by remaining in their midst. I could not, therefore, voluntarily retire. Amid this conflict of duties I could only throw the responsibility of removing me from them on the Administration. I am fully conscious of the fact that a person, holding, in the public life of India, a position such as I do, has to be most careful in setting an example. It is my firm belief that in the complex constitution under which we are living, the only safe and honourable course for a self-respecting man is, in the circumstances such as face me, to do what I have decided to do, that is, to submit without protest to the penalty of disobedience.